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May 28, 2026

Via Email

Kristen Clothier
Town of Telluride
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**Re: Shandoka / Lot L Redevelopment
C7CC - Compliance with Backman Village Plat and 1987 Dedication Instrument**

Dear Kristen:

This firm represents Chair 7 Community Coalition, a Colorado nonprofit corporation ("**C7CC**"). This organization has almost 200 members who both own and rent, are residents and second homeowners, and occupy property all throughout the surrounding multi-family residential units, deed restricted units, and blocks of single family homes.

This letter outlines multiple concerns by C7CC regarding the proposed redevelopment for Shandoka / Lot L ("**Shandoka Proposal**"), and the lack of compliance with the uses stated in the Backman Village Plat and a 1987 Dedication Instrument.

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1. Backman Village Plat

The Declaration of Protective Covenants, Conditions and Restrictions for the Backman Village Subdivision was recorded on June 29, 1979, at Book 380, Pages 377–386 of the records of the San Miguel County Clerk and Recorder (Reception No. 212306) (“**Backman Village Covenants**”). The Town and The Telluride Company are the parties.

The Backman Village Covenants incorporate the Backman Village Plat recorded on June 29, 1979 at Reception 212301. The allowed uses on Lot 48-B (now Lot L), were parking, a possible future parking structure, and 120 units of employee housing transferrable to adjacent lots by replat.

The note reads:

LOT 48-B, PARKING, POSSIBLE FUTURE PARKING STRUCTURE AND 120 UNITS OF EMPLOYEE HOUSING TRANSFERABLE TO ADJACENT LOTS
BY REPLAT, 3.747 ACRES.

Backman Village Subdivision Amended Plat No. 1 was recorded March 10, 1981 (PB1 at page 328). This plat amendment changed the use for Lot L to *parking only*. Specifically, “parking to fulfill cumulative off street parking for Lots A-H, J and K, the Coonskin Lift and proposed future lift, and “joint use of the parking lot by The Telluride Company and the Town of Telluride.” Further, Lot L is subject to “a generalized access easement, guaranteeing access to all adjacent lots nonspecifically, pursuant to parking lot utilization plans and adjusted to actual use.” The specific plat note reads:

general. total 1.897 acres.
Lot L - Parking. This lot fulfills cumulative off street parking requirements created by improvements on Lots A,B,C,D,E,F,G,H,J, and K as well as the Coonskin Lift, a proposed future lift, and the joint use of the parking lot by The Telluride Company and the Town of Telluride. Lot L is subject to a generalized access easement, guaranteeing access to all adjacent lots nonspecifically, pursuant to parking lot utilization plans and adjusted to actual use. Total 3.758 acres.

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Then there was a Replat of Lots J and L recorded January 30, 1996 in Plat Book 1 at Page 1991 (“**1996 Backman Village Lots J and L Replat**”). The plat note and uses stayed the same.

Lot L – Parking. This lot fulfills cumulative off street parking requirements created by improvements on Lots A, B, C, D, E, F, G, H, J, and K as well as the Coonskin Lift, a proposed future lift, and the joint use of the parking lot by The Telluride Company and the Town of Telluride. Lot L is subject to a generalized access easement, guaranteeing access to all adjacent lots nonspecifically, pursuant to parking lot utilization plans and adjusted to actual use. Refer to Plat Book 438, pages 733 and 734; Plat Book 450, pages 364–403.

Thus, the 1996 Replat governs rather than the original Backman Village Plat, and the *only allowed use is parking*, including to fulfill the cumulative parking requirements of the surrounding lots, all of which have a generalized access easement.

The Shandoka Proposal has the following uses:

- Parking structure with 900 spaces
- 50 to 60 affordable dwelling units (with limited number free market)
- approximately 6,000 square feet of multi-use commercial space (childcare, fitness, food bank, and small food and beverage)
- approximately 2,700 square feet of transit center space

While parking is an allowed use, it is intended to serve the specific surrounding lots and the ski life, *not general commuter intercept parking*.

The affordable housing, commercial uses and transit center, however, *are not allowed uses* under the 1996 Backman Village Lots J and L Replat and are in material conflict with the plat note uses. Therefore, they will require a plat amendment.

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An amendment to the Backman Village Plat requires *all* current owners in Backman Village to sign as successors of The Telluride Company, plus The Telluride Company. This will not be possible because the members of C7CC, many of whom are also owners of property in Backman Village, will not agree to such an amendment.

Since the proposed development in the Shandoka Proposal would require multiple Backman Village plat amendments, each of which in turn requires unanimous consent, and since that unanimous consent will not be forthcoming, the Shandoka Proposal is *literally futile*.

How does the Town as applicant and the Town as the reviewing body intending to address this futility?

2. 1987 Dedication Instrument

There is also a Dedication instrument recorded on September 1, 1987 in Book 483 at Pages 733-734, which is an exhibit to the Operations and Maintenance / Project Management Agreement for South Backman Village Improvement District ("**Operations Agreement**"). In this Dedication, The Telluride Company quit claimed Lot L to the Town of Telluride "for use as a public parking lot, for public transportation, for pedestrian and vehicular access, and for river park and trail corridors." Further, this instrument states, "The portion of the property dedicated for river park and trail corridor improvements shall be limited to an area fifty-feet in width, along the northern portions of Lots L and J."

Given the restrictions in this deed, the following proposed uses are not permitted:

- 50 to 60 affordable dwelling units (with a limited number free market)
- approximately 6,000 square feet of multi-use commercial space (childcare, fitness, food bank, and small food and beverage)

If the foregoing uses are not permitted due to restrictions in the recorded deed, then the Shandoka Proposal cannot proceed.

3. Operations Agreement

The Operations Agreement is between the Town and the owners of Lots A, B, C, D, E, F, G, H, J, K and L, Backman Village. As a reminder, here is a depiction of those lots.

On July 21, 1987, the Town of Telluride established a Special Improvements District (Ordinance No. 787), which assessed property owner for the capital construction costs of improvements to

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the road, parking area, and river park corridor. The Operations Agreement provides for continued operations and maintenance.

One open question is whether this Operations Agreement allows the Town to assess operations and maintenance expenses arising out of the new improvement to the surrounding property owners. Another open question is whether this special improvements district is empowered to finance the new proposed roads, parking area, and river park corridor.

C7CC seeks to understand the effect this application would have on the Operations Agreement, which:

- Acknowledges there are certain ski area parking requirements by the U.S.F.S.
- Provides that Lot L should be available for parking by ski area guests, business invitees and employees.
- Acknowledges that future development on Lots A-K “may utilize certain parking spaces as designated (non-specifically) for those Lots by Backman Village Amended Plat No. 1.” It is unclear how and where these certain parking spaces were designated and how many there are. And then during ski season Telco has the right to designate reasonably convenient parking areas to these owners subject to concurrence with the Town Manager.
- Provides for contribution of operations and maintenance expenses for properties where parking requirements are not met on-site, except for employee housing properties.
- Acknowledges that Cimmaron Lodge, Etta Place and Etta Place Too have met their parking requirements on-site, yet provides for assessments to those developments.
- Provides that Telco is entitled to review the design, engineering, and monitor construction management of Lot L improvements. This may be limited to improvements stated in the Ordinance establishing the district.

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- Provides that Telco shall operate and manage the parking lot improvements on behalf of the Town during ski season and utilized for public parking including patrons of the ski area.

Thank you and we look forward to your response as the reviewing body, and the response of the Town of Telluride as applicant.

Respectfully submitted,

/s/ Diane Wolfson

Diane Wolfson, Esq.

Counsel for Chair 7 Community Coalition, a Colorado nonprofit corporation